

SECOND SCHEDULE.

Section 26

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
50 & 51 Vict. c. 23.	The Incumbents Resignation Act, 1871, Amendment Act, 1887.	Section four.
8 & 9 Geo. 5. c. 54.	The Tithe Act, 1918 -	Sections one and two; subsection (2) of section four from the words "and in default of such "agreement" to the words "if they think fit determine." In the First Schedule, paragraphs 1 and 3.
10&11 Geo. 5. c. 22.	The Ecclesiastical Tithe Rentcharge (Rates) Act, 1920.	The whole Act.
12&13 Geo.5. c. 58.	The Ecclesiastical Tithe Rentcharges (Rates) Act, 1922.	The whole Act.

CHAPTER 88.

An Act to amend the law with respect to
the Coastguard, and for purposes connected
therewith. [22nd December 1925.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the
same, as follows:—

1.—(1) His Majesty's Coastguard shall consist of such numbers of officers and men as the Board of Trade (hereinafter referred to as "the Board") may, with the

Transfer of
the coast-
guard to

the Board
of Trade.

consent of the Treasury from time to time think fit, and shall be raised, maintained, equipped, and governed by the Board and employed as a coast-watching force for the performance of the duties hitherto performed by the coastguard on behalf of the Board, and of such other duties as may be determined by the Board.

(2) All land which is at the commencement of this Act held by the Admiralty in connection with the coastguard service and required by the Board for the purposes of His Majesty's Coastguard shall, notwithstanding any provisions in any lease or other instrument prohibiting or restricting the transfer or assignment thereof, be transferred to the Commissioners of Works by Order of His Majesty in Council without the necessity of any other conveyance or assignment, and shall be taken by the said Commissioners as land necessary for the public service and held by them for all the estate and interest for which it was previously held by the Admiralty.

16 & 17 Vict.
c. 107.

(3) The power of the Admiralty to acquire land for the purposes of the coastguard service is hereby transferred to the Commissioners of Works, and accordingly the said Commissioners may cause to be surveyed and marked out any land not exceeding three acres at or for any one coastguard station, which may be required for the purposes of His Majesty's Coastguard with all necessary ways to and from such land, and may enter into agreements for the acquisition of such land as land necessary for the public service, and sections three hundred and thirty-six to three hundred and forty-five (both inclusive) of the Customs Consolidation Act, 1853, as amended by any subsequent enactment shall apply with the necessary modifications to the purchase by the said Commissioners of land required by the Board for the purposes of His Majesty's Coastguard as those sections have hitherto applied to the acquisition by the Admiralty of land required for the purposes of the coastguard service.

Transfer of
control of
coastguard
to Admi-
ralty in
case of
emergency.

2.—(1) Whenever any emergency arises which, in the opinion of the Admiralty renders it advisable that His Majesty's Coastguard shall be placed under the control of the Admiralty, the Admiralty may by order direct that the management and control of His Majesty's Coastguard shall be transferred to the Admiralty, and while any such order is in force, the powers and duties

of the Board under this Act in relation to His Majesty's Coastguard shall be exercised and performed by the Admiralty, and the officers and men of His Majesty's Coastguard shall be subject to the Naval Discipline Act and be borne on the books of one of His Majesty's ships in commission, with such respective ranks and ratings and such pay and emoluments as may be determined by the Admiralty.

(2) Any order made under this section shall be revoked as soon as the Admiralty is of opinion that the emergency has ended, but without prejudice to anything previously done thereunder.

3.—(1) This Act may be cited as the Coastguard Act, 1925. Short title,
extent,
saving and
repeal.

(2) This Act shall extend to the Isle of Man.

(3) Save as is in this Act otherwise expressly provided, all laws in force at the commencement of this Act for the protection of the coastguard, and all rights, authorities, powers, privileges and immunities which at the commencement of this Act are vested in, or may be had or exercised by the coastguard shall be applicable to, and be vested in, and had and exercised by His Majesty's Coastguard.

(4) The Coast-guard Service Act, 1856, is hereby repealed. 19 & 20 Vict.
c. 83.

CHAPTER 89.

An Act to amend the Education (Scotland) Act, 1908, and the Education (Scotland) Act, 1918.

[22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. In the Education (Scotland) Act, 1918, there shall be inserted after the second paragraph of subsection (9) of section eighteen the following paragraph :— Amendment
of 8 & 9
Geo. 5.
c. 48. s. 18.

“ Provided also that if before the expiry of ten years from the transfer of any such school the